

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Katherine O'Connor	Team: Team # 1	CCRB Case #: 200512451	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Monday, 10/17/2005 11:10 PM	Location of Incident: Corner of § 87(2)(b)	18 Mo. SOL 4/17/2007	Precinct: 69		
Date/Time CV Reported Tue, 10/18/2005 9:35 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 10/18/2005 9:35 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Patrick Smith	29672	931998	069 PCT
2. POM Brian Mchenry	31146	931821	069 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Patrick Smith	Abuse: PO Patrick Smith stopped the car in which § 87(2)(b) was an occupant.	A . Unsubstantiated
B . POM Brian Mchenry	Abuse: PO Brian McHenry stopped the car in which § 87(2)(b) was an occupant.	B . Unsubstantiated
C . POM Patrick Smith	Force: PO Patrick Smith pointed his gun at § 87(2)(b)	C . Unsubstantiated
D . POM Patrick Smith	Abuse: PO Patrick Smith searched the car in which § 87(2)(b) was an occupant.	D . Substantiated
E . POM Patrick Smith	Discourtesy: PO Patrick Smith spoke obscenely and/or rudely to § 87(2)(b)	E . Substantiated

Synopsis

On October 17, 2005 at approximately 11:15pm, § 87(2)(b) was driving his car through a residential Brooklyn neighborhood. He was stopped at a traffic light at the corner of § 87(2)(b) when he saw a flashing red light coming from a black sedan behind him, which § 87(2)(b) took to mean that he should pull over [**Allegation A** and **Allegation B**]. When the light turned green, § 87(2)(b) drove through the intersection and pulled over. The black sedan pulled up behind him, and an officer (identified as PO Patrick Smith of the 69th Precinct) emerged from the vehicle. PO Smith pointed his firearm at § 87(2)(b) and told him to exit his vehicle [**Allegation C**]. § 87(2)(b) did so, and PO Smith proceeded to search his car. He looked in the front and back seats, as well as in the glove compartment and armrest console area [**Allegation D**]. While this was going on, PO Smith's partner, PO Brian McHenry, stood behind § 87(2)(b)'s car, next to § 87(2)(b). When PO Smith finished searching the vehicle, he ordered § 87(2)(b) to get back into his car, and asked him to produce his license and registration. While § 87(2)(b) was getting his materials together, PO Smith told § 87(2)(b) "Please tell me that your license is suspended, because I would love to fuck you up tonight" [**Allegation E**]. § 87(2)(b) was issued a summons for § 87(2)(b).

§ 87(2)(b) was contacted on October 24, 2005, and the investigative process was explained to him. § 87(2)(g)

§ 87(2)(b). It is recommended that allegations (A) and (B) be closed *unsubstantiated*. § 87(2)(g)

§ 87(2)(b). It is recommended that allegation (C) be closed *unsubstantiated*. § 87(2)(g)

§ 87(2)(b) it is recommended that allegation (D) be closed *substantiated*. § 87(2)(g)

§ 87(2)(b), it is recommended that allegation (E) be closed *substantiated*.

Summary of Complaint

On October 18, 2005, § 87(2)(b) went to the 69th Precinct to file a complaint (encl. 5) against PO Patrick Smith of the 69th Precinct and his partner (identified through the investigation as PO Brian McHenry of the 69th Precinct). This complaint was later forwarded to the CCRB (encl. 6a-b). § 87(2)(b) stated that he was pulled over while driving [**Allegation A** and **Allegation B**] and removed from his car at gunpoint by PO Smith [**Allegation C**]. He stated that PO Smith searched his vehicle [**Allegation D**], and told § 87(2)(b) that he would love to "fuck [him] up" [**Allegation E**].

§ 87(2)(b) provided a brief telephone statement to the CCRB on October 24, 2005 (encl. 7). On November 14, 2005, he was interviewed in person at the CCRB (encl. 8a-e). § 87(2)(b) is a § 87(2)(b) black male § 87(2)(b). He currently lives at § 87(2)(b) in Brooklyn. He provided the following statement to the CCRB:

At approximately 11:00pm on October 17, 2005, § 87(2)(b) was in his 2004 navy blue Nissan Maxima, driving west on § 87(2)(b) in Brooklyn. As he was driving, he came to a 4-way stop sign at the intersection of § 87(2)(b) and § 87(2)(b) and he stopped completely at this sign before continuing west on § 87(2)(b). He came to a traffic light at the intersection of § 87(2)(b) and § 87(2)(b). Because the light was green, he went through the intersection and made a right turn, proceeding north on § 87(2)(b). When he came to the next intersection at § 87(2)(b) and § 87(2)(b) he reached a red light, and brought his car to a stop. While he was waiting for the light to turn green, § 87(2)(b) noticed "red lights flashing" outside his car. He looked in his mirror and saw a gray or black Chevrolet Impala with a flashing red light on the dashboard. Then, the traffic light turned green, and § 87(2)(b) went through

the intersection and pulled over to the side of the road. As he did so, the vehicle behind him turned on its siren. In total, from the time he first saw the flashing red lights to when he pulled over his car, he drove a total of about “30 feet.” After he pulled over, the Impala drove up directly behind him.

An officer (identified as PO Patrick Smith of the 69th Precinct) emerged from the Impala’s driver side door and approached § 87(2)(b)’s driver side door. PO Smith had his gun drawn, and was holding it with both hands, pointing it at § 87(2)(b) when he approached the vehicle. PO Smith told § 87(2)(b) to get out of the car, but § 87(2)(b) did not respond immediately. Again, PO Smith told § 87(2)(b) to get out of the car, and § 87(2)(b) did so. PO Smith told § 87(2)(b) to “go to the back of the car,” and § 87(2)(b) complied, placing his hands on the trunk of his car, as per PO Smith’s instruction. Then, a second officer (identified as PO Brian McHenry) exited the Impala’s passenger side door and stood behind § 87(2)(b). PO Smith then began to search § 87(2)(b)’s vehicle. He opened the glove compartment and then checked under the driver and passenger seat § 87(2)(b) had left his door open when he exited the car). PO Smith lifted up the arm rest console and looked inside. The console also contained a “secret compartment” under a false bottom, and PO Smith lifted out the bottom and searched the secret compartment of the armrest. Then, PO Smith went into the back of the car and searched under the seats and on the floor. § 87(2)(b) saw him do this through the rear windshield. PO Smith did not search § 87(2)(b)’s trunk. The vehicle search lasted a little over two minutes. At one point, § 87(2)(b) asked PO McHenry if PO Smith had the right to search his vehicle, and PO McHenry said, “When [PO Smith] is finished, he will tell you.”

PO Smith finished the vehicle search and told § 87(2)(b) to get back into his car. § 87(2)(b) did so, and PO McHenry returned to the Impala and went inside it, closing the door after him. § 87(2)(b) noticed that his glove compartment was still open, and that the false bottom of the armrest console had not been properly replaced—the armrest was also still open. Once § 87(2)(b) was inside his car, PO Smith asked him for his license and registration. § 87(2)(b) leaned over toward his glove compartment to retrieve them, and as he was doing so, he heard PO Smith say, “Please tell me that your license is suspended, because I would love to fuck you up tonight.” § 87(2)(b) looked back at PO Smith, and handed over his license and registration. Then, PO Smith took the materials and went back to his vehicle and got inside. During this exchange, § 87(2)(b) still had his driver side door open, and his left leg was outside the car, with his foot on the pavement. At some point, PO Smith pushed the driver side door, as if trying to shut it. The door hit § 87(2)(b)’s leg, but because PO Smith had not used much force, his leg was not hurt. § 87(2)(b) believed that this action was accidental on PO Smith’s part.

PO Smith remained in the police vehicle for approximately fifteen minutes, after which, he emerged and gave § 87(2)(b) a summons for reckless driving. PO Smith began to walk back to his car, and § 87(2)(b) asked him if he could speak to him for a minute about why he had been given the ticket. PO Smith refused to talk to him, and stated, “As long as you see those red lights flashing on this car it means to stop. The ticket in your hand, that’s your answer.” PO Smith got back into his vehicle and drove away. The entire incident lasted about 22-25 minutes. § 87(2)(b) stated that at no time did he raise his voice, even though PO Smith spoke in a “loud, demanding tone.” § 87(2)(b) denied that he was intoxicated during the incident, and stated that he did not speed at any point.

Results of Investigation

PO Patrick Smith

PO Patrick Smith of the 69th Precinct was interviewed by the CCRB on November 30, 2005 (encl. 10a-c). On October 17, 2005, PO Smith was working with PO Brian McHenry from 8:30pm to 4:05am on October 18, 2005. He was in uniform and was working grand larceny conditions. They were assigned to a gray Chevrolet Impala.

PO Smith had no memo book entries for this incident. He issued a summons to § 87(2)(b) on the date of the incident for ‘§ 87(2)(b),’ stating that he was in violation of § 87(2)(b) (encl. 9a-c). The summons stated, ‘§ 87(2)(b)

§ 87(2)(b) A warrant check was also run, according to the summons.

PO Smith provided the following statement:

At approximately 11:10pm on October 17, 2005, PO Smith was on patrol in 69th Precinct. The area was described as “high crime,” and conditions include grand larceny auto. As the officers were driving, PO Smith witnessed a car drive by at a high rate of speed, going approximately 60 miles per hour (later in the investigation, it was discovered that the speed limit in the area is approximately 35 miles per hour). The vehicle was driving erratically, changing lanes and attempting to go around cars on the street. PO Smith did not recall the car’s make or model, but stated that it was probably either a Nissan Altima or Honda Accord. He could not recall where he first observed the vehicle. As soon as the car drove by, PO Smith activated the car’s lights and siren and followed behind the vehicle at a car length’s distance, attempting to pull the vehicle over. The car continued to drive on for approximately six to seven blocks (making at least one turn in the process) before it pulled over near the intersection of § 87(2)(b) and § 87(2)(b). (PO Smith later revised this statement to say that the car drove for ten blocks before pulling over). The speeding vehicle did not run any stop signs in the process, nor did it run any red lights. PO Smith did not make any radio transmissions about the vehicle pursuit at any point.

When both vehicles had stopped, PO Smith told the driver of the civilian vehicle to turn off the car, using the police car’s loudspeaker. The driver complied, and both PO Smith and PO McHenry exited their car and approached the vehicle. As he was walking toward the car, PO Smith noticed that the driver leaned toward the passenger seat, and to PO Smith, it looked like he was looking under the seat. Due to PO Smith’s suspicions as to why the car did not pull over right away, along with the fact that the driver was displaying furtive movements and appeared to be “reaching for a weapon,” both PO Smith and PO McHenry drew their guns. (PO Smith later revised this statement to say that he did not recall whether PO McHenry drew his gun). PO Smith suspected that the driver had committed a violent crime, namely auto theft. When asked why he suspected this, PO Smith stated that cars of this particular make and model are often the targets of theft. The possibility that the car may have been stolen gave him additional reason to fear for his safety.

When he reached the driver side door, PO Smith pointed his gun at the driver (identified as § 87(2)(b)). PO McHenry proceeded to the passenger side door. § 87(2)(b) asked PO Smith why he had pulled him over, and why he had his gun pointed at him. § 87(2)(b) was described as “belligerent,” yelling at the officers and moving his hands around. PO Smith asked § 87(2)(b) to exit his car, and § 87(2)(b) refused. PO Smith then opened the driver side door, took § 87(2)(b) by his arm, and guided him from his seat—§ 87(2)(b) did not resist. PO Smith brought § 87(2)(b) to the back of the car and PO McHenry watched him while PO Smith began to search the reachable areas of the vehicle. He searched under the driver and passenger side seat, and then looked in the back seat area. At no point did PO Smith search the glove compartment or the armrest console. When asked why he searched the vehicle, PO Smith replied that he did so because of “the way § 87(2)(b) was moving” when he was approaching the vehicle. PO Smith did not observe any weapons or contraband inside the vehicle prior to the search, and he did not recover anything from the vehicle during the search. At no point did PO McHenry assist in the search, and the entire search lasted approximately “a minute.” He believed that PO McHenry obtained § 87(2)(b)’s license while the search was being performed.

Following the search, PO Smith instructed § 87(2)(b) to get back into his vehicle, and he did so. Then, PO Smith and PO McHenry went back to their vehicle, and one of the officers (PO Smith could not recall which) wrote out a summons to § 87(2)(b) for § 87(2)(b). PO Smith did not state whether he ran § 87(2)(b)’s license plate number. After “a couple seconds,” both officers exited their vehicle and handed § 87(2)(b) his summons, explaining that the instructions were on the back. At no point did PO Smith ask § 87(2)(b) if his license was suspended, and he never used profanity toward § 87(2)(b) during the incident. The officers then got back into their vehicle and drove away. The entire stop lasted approximately six minutes.

PO Brian McHenry

PO Brian McHenry of the 69th Precinct was interviewed by the CCRB on December 19, 2005 (12a-b). On October 17, 2005, PO McHenry was working with PO Patrick Smith on grand larceny auto conditions. He was in uniform and was assigned to an unmarked black Chevrolet Impala, which PO Smith operated. § 87(2)(g):

While driving westbound on § 87(2)(b) PO McHenry and PO Smith observed a vehicle pass through a stop sign without coming to a full stop. The car was going fast, but PO McHenry could not recall how fast the car was going. The officers immediately turned on their lights and siren and began to follow

the vehicle. They proceeded to follow it straight for about six blocks. In the process, the vehicle turned right onto either § 87(2)(b) or § 87(2)(b), going through another stop sign without coming to a complete stop. After turning through the stop sign, the civilian vehicle went approximately one more block before pulling over and coming to a stop. PO McHenry described the vehicle stop as “routine” and for that reason; no radio calls were made while the officers were in pursuit. PO McHenry did not feel concern to the point where he felt that they needed to call for backup.

When they were approaching the vehicle, PO Smith drew his gun—PO McHenry did not recall whether PO Smith ever pointed his gun at the driver (identified as § 87(2)(b)). PO McHenry did not draw his gun at any point. While he was approaching the vehicle, PO McHenry did not see § 87(2)(b) make any movements inside his car. After PO Smith asked § 87(2)(b) to exit his car, § 87(2)(b) did so on his own; PO Smith did not place his hand on or physically guide § 87(2)(b) from his car.

PO Smith “looked in the car,” but did not search it at any point. PO Smith looked into the front seat area of the vehicle for about “ten to fifteen seconds,” but never crossed the plane of the car. PO Smith never opened the car’s doors or removed anything from the vehicle. PO McHenry did not search the car at any point. During the time that § 87(2)(b) was standing outside his car, his demeanor was “calm,” and at no point did he make any gestures or use any unusual body language.

PO Smith did not recall asking § 87(2)(b) for his identification, and could not recall if § 87(2)(b) was issued a summons or if his license was run for warrants. He did not recall PO Smith use any profanity toward § 87(2)(b) at any point, and explained that he was “within earshot” of PO Smith at all times during the incident.

Police Documents

The **sprint index** (encl. 13a-b) for October 17, 2005 between 8:00pm and 11:59pm in the vicinity of § 87(2)(b) and § 87(2)(b) in Brooklyn did not reveal any radio call-outs made in the vicinity where § 87(2)(b) was driving. A **summons** (encl. 9a-c) was issued to § 87(2)(b) for “§ 87(2)(b)” on October 17, 2005. The summons number is § 87(2)(b) § 87(2)(b).

§ 87(2)(g)

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB History

§ 87(2)(b) has never filed a CCRB complaint prior to the present case (encl. 3). Neither PO Smith nor PO McHenry have had any substantiated CCRB allegations filed against them (encl. 1 and 2). Both officers have worked with the NYPD for three years.

Conclusions and Recommendations

Officer Identification

§ 87(2)(b) identified PO Smith by his name and tax number, which were written on the summons he received. He identified PO Smith as the driver of the police vehicle, which PO McHenry corroborated, during his interview. In describing PO Smith’s partner (PO McHenry), § 87(2)(b) gave an accurate physical description. PO Smith identified his partner as PO McHenry on the date of the incident. Neither officer disputes his presence at the scene.

§ 87(2)(g)

Disputed and Undisputed Facts

It is **undisputed** that § 87(2)(b) was pulled over by a police vehicle operated by PO Smith, along with PO McHenry. It is undisputed that PO Smith pointed his gun at § 87(2)(b) upon directing

him to exit his vehicle. § 87(2)(b) was issued a summons for § 87(2)(b), as well. § 87(2)(g)

Credibility Analysis

§ 87(2)(g)

§ 87(2)(g)

Allegation A: Abuse of Authority: PO Patrick Smith stopped the vehicle in which § 87(2)(b) was an occupant.

Allegation B: Abuse of Authority: PO Brian McHenry stopped the vehicle in which § 87(2)(b) was an occupant.

§ 87(2)(g)

PO Smith states that § 87(2)(b) was speeding and driving erratically while PO McHenry stated that § 87(2)(b) was pulled over for running a stop sign. PO Smith denied that § 87(2)(b) ran a stop sign in the process of the stop. § 87(2)(b) stated that at the time of the incident, he was not speeding, and that the first point where he noticed the police vehicle's flashing lights was at the intersection of § 87(2)(b) and § 87(2)(b). He explained that he pulled over immediately after crossing the intersection where he noticed the lights begin to flash. § 87(2)(g)

it is recommended that allegation (A) and allegation (B) be closed as *unsubstantiated*.

Allegation C: Force: PO Patrick Smith pointed his gun at § 87(2)(b)

According to PO Smith's testimony, at the time of the incident, he observed § 87(2)(b) making movements from inside his car that he interpreted as being possibly dangerous. § 87(2)(g)

§ 87(2)(b) In response to this fear, he drew and pointed his gun at § 87(2)(b) According to *Police Department v. Gilner* (encl. 1a-c), which examines the circumstances

under which a police officer can point his firearm at an individual, “There are no regulations or guidelines concerning the drawing of a weapon. The policy of the Department is that an officer can draw his firearm and point at another person so long as he has a reasonable fear for his own or another’s personal safety.”

§ 87(2)(g)

it is recommended that allegation (C) be closed as *unsubstantiated*

Allegation D: Abuse of Authority: PO Patrick Smith searched the vehicle in which § 87(2)(b) was an occupant.

Kamins’s New York Search and Seizure (encl. 2a-e) outlines a set of criteria for where a vehicle can be searched in the absence of a warrant. “When probable cause exists independently of an arrest, it may arise in a number of instances. If an officer makes a valid investigatory stop of a vehicle and observes in plain view a quantity of drugs, a weapon, or evidence of a crime, he would have probable cause to search the entire vehicle. Similarly, if an officer observes a weapon in the waistband of an occupant, probable cause will exist to search the car. If the officer smells the distinctive odor of drugs, he would also have probable cause to search the entire vehicle.” § 87(2)(g)

“A car can also be searched when the police develop information creating a probable cause to believe there is evidence of a crime...Finally, if the police observe a vehicle which matches the description of a “getaway” vehicle used in a crime, they have probable cause to search the car for a weapon and any evidence of the crime.” § 87(2)(g)

Kamins also describes circumstances governing protective searches for weapons during investigatory stops. “In most cases where the suspect is questioned outside the car, New York courts have found a search to be unreasonable.... For example, the police will frequently observe an occupant of a vehicle making furtive motions near or towards a bag or container. If the police order the occupant out of the car and then search the bag or container, the search will be illegal.” § 87(2)(g)

. It is therefore recommended that allegation (D) be *substantiated*.

Allegation E: Discourtesy: PO Patrick Smith spoke obscenely and/or rudely to § 87(2)(b)

stated that PO Smith told him, “Please tell me that your license is suspended because I would love to fuck you up tonight.” In each of his three statements, § 87(2)(b) used virtually the exact same wording when explaining what PO Smith said to him, § 87(2)(g)

in each of § 87(2)(b)’s three statements, PO Smith made the remark at the exact same point during the incident (after § 87(2)(b) had returned to his vehicle, following the search). PO Smith denied that he made any such remark, § 87(2)(g)

§ 87(2)(g)

According to § 87(2)(b)
PO McHenry had already returned to his police vehicle at the time that PO Smith said this, § 87(2)(g)

It is recommended that
allegation (E) be closed *substantiated*.

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: